

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-16

**WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. — POSSIBLE VIOLATIONS OF 46
U.S.C. § 41102(c)**

JOINT STATUS REPORT

As directed by the Administrative Law Judge’s Initial Order (Order), served January 6, 2022, the Bureau of Enforcement (BOE) and Respondents Wan Hai Lines, LTD. and Wan Hai Lines (USA) LTD. (collectively, “Wan Hai”) submit this Joint Status Report and state as follows:

Counsel for the BOE and Wan Hai (the Parties) conferred on January 25, 2022, to discuss limitations on discovery, proposed stipulated facts, and the current proceeding with regards to the Order. The Parties agreed to limit discovery by setting a deadline for the service of initial discovery requests and a date for the commencement of depositions. The Parties also agreed to limit each party to six virtually held depositions. The Parties further agreed to limit discovery to one expert witness each, with written expert testimony only. Lastly, the Parties have not agreed to mediation or exchanged settlement offers, but the Parties have set a date to discuss settlement.

Based on their discussions and agreements, the Parties propose the following schedule of deadlines:

- a. February 11, 2022 Deadline for service of Parties' Initial Discovery Requests;
- b. February 28, 2022 Deadline for Parties' Responses to Initial Discovery Requests;
- c. February 18, 2022 BOE's Expert Witness Report Deadline;
- d. February 19, 2022 Depositions to Commence;
- e. March 7, 2022 Respondents' Expert Witness Report Deadline;
- f. March 21, 2022 Depositions to Conclude;
- g. March 24, 2022 Last Day to Serve Discovery Requests;
- h. March 31, 2022 End of Discovery;
- i. April 4-5, 2022 Proposed Dates of Oral Hearing;
- j. April 21, 2022 BOE's brief, fact findings, and appendix deadline;
- k. May 12, 2022 Respondents' brief, fact findings, appendix, and response deadline;
- l. May 20, 2022 BOE's reply brief deadline;

Finally, the Parties discussed filing a joint stipulation of facts, and the BOE will provide, within the next 7 days, counsel with a proposed joint stipulation of facts for their client to review. The proposal is generally acceptable to counsel for Respondents, who will be proposing additional factual stipulations. The Parties have agreed to continue their discussion of stipulated facts as discovery progresses.

DATED: January 28, 2022

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that on this 28th day of January 2022, a copy of the foregoing Joint Status Report has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

Serena Tang

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Counsel for Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC

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